

M/s Mangalam Agro Foods v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 28 August 2024 · 2024:AHC:138120-DB · WRIT - C No. - 27064 of 2024 · **Writ disposed; clause 6.5 objection; recovery stayed pending speaking order**

HEADNOTE

A writ challenging a Section 3 recovery demand for disputed electricity dues is disposed of with liberty to file a Clause 6.5 objection; the recovery remains in abeyance until a speaking order, and thereafter abides that decision.

FACTUAL SUMMARY

M/s Mangalam Agro Foods challenged a demand dated 3 July 2024 issued under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 for alleged electricity dues. The petitioner disputed the demand. Counsel for the Electricity Department submitted that the dispute could be decided under Clause 6.5 of the Electricity Supply Code, 2005. The Court permitted correction of respondent no. 2's description in the cause title.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute; objection to recovery demand

HOLDING

A writ against a Section 3 recovery demand for disputed electricity dues is disposed of with liberty to file a Clause 6.5 objection within two weeks; the competent authority shall decide it by a speaking order within four weeks. Until that decision the recovery remains in abeyance and thereafter abides the objection decision. If no objection is filed within two weeks, the licensee may proceed in accordance with law. ¶ 3-5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a Section 3 recovery demand for disputed electricity dues is disposed of with liberty to file a Clause 6.5 objection; the recovery remains in abeyance until a speaking order, and thereafter abides that decision. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 03.07.2024 ELECTRICITY DUES WERE PAYABLE

Merits left to a Clause 6.5 objection and speaking order; recovery stayed only until that decision. ¶ 2-5